

Present: Ms. Rabiya Thakur & Sh. Karan Sinha, counsel for the
applicant-accused (A-174) Paramvir Singh Sangwan.

1. File taken up today on the application of applicant-accused Paramvir Singh Sangwan (A-174). Let notice of the application be issued to the respondent SFIO through its Senior Standing Counsel, Sh. Lokender Singh Raghav, Advocate for **27.09.2019**.

2. It is stated by the counsel for the applicant-accused that the applicant-accused has approached the Hon'ble High Court in a Writ Petition and as per the order dated 13.09.2019 passed in CWP No.23904-2019 while issuing notice of motion to the complainant SFIO and others for 26.09.2019, an interim order in the same terms as passed by the Hon'ble Apex Court in case of *Vijay Shukla Vs. Union of India and another, Writ Petition (Criminal) No.239/2019* dated 03.09.2019 and extended from time to time has been passed in favour of applicant and as such the warrant of arrest already issued against the applicant is required to be stayed as it amounts to coercive process.

3. Admittedly, as per the order dated 03.09.2019 in *Vijay Shukla's (supra)* the Hon'ble Apex Court has ordered that no coercive action will be initiated against the petitioner and now that matter is pending before the Hon'ble Apex Court for 19.09.2019. Since the order in the same terms have been passed in favour of the applicant, as such, the warrant of arrest already issued as per the order dated 04.09.2019 be not executed by the concerned police authorities. Necessary information be sent to the DCP (HQ), Gurugram in this regard and copy of this order be also sent for ready reference. The counsel for the applicant-accused will inform this Court on 27.09.2019 about further orders of the Hon'ble High Court.

Dt. 16.09.2019.

(Satish Kumar)

(Ravi Kumar Sondhi),
Sessions Judge, Gurugram.
(UID No.HR0026)